

estate in A. upon trust, that A. and his *heirs* should sell, and A. devised the estate, neither the heir nor devisee could sell; not the *heir*, for as regards this estate the descent had been intercepted and there was no heir, and not the *devisee*, for he was not the person to whom the execution of the trust was committed (c). [This proposition was founded upon *Cooke v. Crawford*, and subsequent cases, but in the recent case of *Osborne to Rowlett* (d), the late M. R. after an elaborate discussion of the cases came to the conclusion that *Cooke v. Crawford* was wrongly decided, and he held that where real estate was devised to trustees and their heirs, in trust for sale, the trust was annexed to the estate, and that as the surviving trustee might have lawfully devised the trust estate the devisee might execute the trust, and he expressly overruled *Cooke v. Crawford*. In a subsequent case, however, before the Court of Appeal (e), in which the precise point did not arise, L.JJ. James, and Baggallay, expressed a doubt whether *Osborne to Rowlett*, was rightly decided, and the question must in the present state of the authorities be considered as an open one. It may be observed that M. R. justified his decision on the ground that the decision in *Cooke v. Crawford*, was, in his opinion, based on the assumed principle that a trustee unless authorized so to do, could not lawfully devise the trust estate, and that as that principle has been overruled by subsequent cases, *Cooke v. Crawford*, has ceased to be a binding authority, but it is submitted that the real ground for the decision in *Cooke v. Crawford*, was that the authority to execute the trust *must be [*231] directly given by the original settlor or testator, and that the surviving trustee by devising the estate to a person not so authorized did not enable the devisee to execute the trust (a). It is submitted that this principle has not been called in question, whatever exceptions have been taken to the observations in *Cooke v. Crawford*, as to the duty of a

(c) *Cooke v. Crawford*, 13 Sim. 91; *Wilson v. Bennett*, 5 De G. & Sm. 475; *Stevens v. Austen*, 7 Jur. N. S. 873; 3 E. & E. 685.

[(d) 13 Ch. D. 774.]

[(e) *Re Morton and Hallett*, 15

Ch. D. 143; and see *Re Ingleby and Boak &c. Insurance Company*, 13 L. R. Ir. 326.]

[(a) See Sugd. V. & P. 14th Ed. p. 665.]